

# STATE OF NEW YORK

---

7172--A

2025-2026 Regular Sessions

## IN ASSEMBLY

March 21, 2025

---

Introduced by M. of A. BICHOTTE HERMELYN, TAPIA -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to the regulation of the use of artificial intelligence and facial recognition technology in criminal investigations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. Artificial intelligence tools like  
2 Cybercheck and facial recognition technologies have been used extensive-  
3 ly in criminal investigations across the U.S., including nearly 8,000  
4 cases in 40 states. However, their use has raised significant legal  
5 challenges due to the lack of transparency in their methodologies and  
6 concerns over accuracy and reliability. Defense attorneys have success-  
7 fully argued in several cases that AI-generated evidence should be  
8 excluded from court proceedings due to these issues. This act aims to  
9 address these concerns by prohibiting the use of AI outputs, including  
10 facial recognition, as evidence while allowing their use for investi-  
11 gative purposes, thereby protecting the rights of defendants and main-  
12 taining the integrity of the judicial process.

13 § 2. Section 837 of the executive law is amended by adding a new  
14 subdivision 25 to read as follows:

15 25. (a) Promulgate a standardized and detailed written protocol for  
16 the utilization of artificial intelligence by police agencies in the  
17 investigation of criminal activity. The protocol shall address the  
18 following topics:

19 (i) authorizing law enforcement agencies to utilize AI systems and FRT  
20 for investigative purposes, including but not limited to data analysis,  
21 pattern recognition, facial recognition, and predictive analytics;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD11032-02-6

1 (ii) authorizing law enforcement agencies to utilize AI systems and  
2 FRT to assist in identifying potential suspects, uncovering evidence,  
3 and generating investigative leads;

4 (iii) requiring law enforcement agencies utilizing AI systems and FRT  
5 to implement transparency measures, including maintaining records of  
6 AI-generated outputs and the parameters used by the AI system. Such  
7 records shall be subject to audit and review by an independent oversight  
8 body designated by the department to ensure compliance with the proto-  
9 col;

10 (iv) requiring law enforcement agencies utilizing AI systems and FRT  
11 to undergo regular independent audits of FRT systems to assess their  
12 accuracy and biases. The results of these audits shall be publicly  
13 accessible and disclosed in any case where FRT evidence is used; and

14 (v) requiring that law enforcement officers utilizing AI systems and  
15 FRT receive thorough training on the limitations and proper use of AI  
16 systems and FRT, emphasizing the importance of understanding and miti-  
17 gating biases and errors.

18 (b) For the purposes of this subdivision:

19 (i) "artificial intelligence" or "AI" means a machine-based system  
20 that can, for a given set of human-defined objectives, make predictions,  
21 recommendations, or decisions influencing real or virtual environments;

22 (ii) "AI-generated output" means any information, analysis, or deci-  
23 sion produced by an AI system during a criminal investigation, including  
24 but not limited to facial recognition, predictive policing models, and  
25 other machine learning algorithms; and

26 (iii) "facial recognition technology" or "FRT" means a technology that  
27 analyzes facial features and is capable of identifying or verifying a  
28 person from a digital image or a video frame from a video source.

29 § 3. This act shall take effect on the ninetieth day after it shall  
30 have become a law.